

26PSCV00782 26PSCV00782

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-09-16

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C09%2F16%2F2026

Source SHA-256: 39dfd62862c9d0ad7f3c762154cc694889141a4051c3167e5ee1ccf1d62d30a5

Case Number: 26PSCV00782 Hearing Date: September 16, 2026 Dept: H

Zhang v. Stillwater

Insurance Co.,

Case No. 26PSCV00782

ORDER ON

DISCOVERY MOTIONS

1. Defendant Stillwater Insurance Co.'s

Motion to Deem Requested Matters Admitted [Set One] is GRANTED. Pursuant to Code of Civil Procedure section 2033.280, subdivision (b), the Court orders the truth of the matters specified in the Requests for Admission, Set One propounded by Stillwater Insurance Co. to Long Zhang deemed admitted. Defendant's request for sanctions is GRANTED in the reduced sum of \$285.00. Sanctions are payable within 30 days from the date of the notice of ruling.

2. Defendant

Stillwater Insurance Co.'s Motion to Compel Plaintiff's Responses to Form Interrogatories [Set One] is GRANTED.

Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling. Defendant's request for sanctions is GRANTED in the reduced sum of \$285.00. Sanctions are payable within 30 days from the date of the notice of ruling.

3. Defendant

Stillwater Insurance Co.'s Motion to Compel Plaintiff's Responses to Special Interrogatories [Set One] is

GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling. Defendant's request for sanctions is GRANTED in

the reduced sum of \$285.00. Sanctions are payable within 30 days from the date of the notice of ruling.

4. Defendant

Stillwater Insurance Co.'s Motion to Compel Plaintiff's Responses to Form Interrogatories [Set Two] is GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling. Defendant's request for sanctions is GRANTED in the reduced sum of \$285.00. Sanctions are payable within 30 days from the date of the notice of ruling.

5. Defendant Stillwater Insurance Co.'s

Motion to Compel Plaintiff's Responses to Requests for Production [Set One] is GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling. Defendant's request for sanctions is GRANTED in the reduced sum of \$285.00. Sanctions are payable within 30 days from the date of the notice of ruling.

Background

Plaintiff

Long Zhang ("Plaintiff") alleges as follows:

Plaintiff had previously purchased a homeowner's insurance policy ("Policy") from Defendant Stillwater Insurance Co. ("Defendant"), which insured the property located at 2209 Ravenfall Ave, Rowland Heights, CA 91748 ("Property"). On January 20, 2025, the Property suffered wind and rain damage to the roof, causing interior damage. The Policy was in full force and effect at the time of the incident and covered the described peril. Based on independent contractors' estimates, Plaintiff submitted a claim for \$160,156.36, but Defendant issued only a partial payment of \$4,602.37 in August 2025 and denied further compensation.

On

May 5, 2026, Plaintiff filed a complaint, asserting causes of action against Defendant and Does 1-10 for: (1) Breach of Contract and (2) Money Damages for Tortious Bad Faith.

A

Case Management Conference is set for September 16, 2026.

1. Defendant's Motion to Deem Requests for

Admissions Admitted

Legal

Standard

“Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc., § 2033.010.) “Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared” (Code Civ. Proc., § 2033.250, subd. (a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280, subd. (a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280, subd. (c).) Unlike a motion to compel further discovery responses, a motion to deem RFA admitted does not have any meet and confer requirements.

It is mandatory that the court “impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280, subd. (c).)

Discussion

Defendant

moves for an order deeming its requested matters admitted. Defendant also requests sanctions in the amount of \$735.00 against Plaintiff and his counsel of record.

Defendant's

counsel represents as follows:

Defendant

propounded the Requests for Admissions, Set One ("RFAs") on Plaintiff on May 12, 2026. (Akahori Decl., ¶ 3, Ex. A.) Defendant did not receive either a response or a request for an extension by June 15, 2026. (Id., ¶ 4.) On June 19, 2026, Defendant emailed opposing counsel regarding the discovery request. (Id., ¶ 5, Ex. B.) Plaintiff has failed to respond to the RFAs as of the filing of this motion. [FN1] (Id.)

The

unopposed motion to deem the content of Defendant's Request for Admission, Set One, admitted is GRANTED. Pursuant to Code of Civil Procedure section 2033.280, subdivision (b), the Court orders the truth of the matters specified in the Requests for Admission, Set One propounded by Stillwater Insurance Co. to Long Zhang deemed admitted.

Sanctions

Defendant

requests sanctions in the amount of \$735.00 (i.e. 1 hour for this Motion; 1 hour for Reply; and 1 hour to prepare for and attend the hearing for the motion) at a rate of \$225/hour. (Akahori Decl., ¶ 8.) Defendant also requests \$60.00 in costs. (Id., ¶ 9.)

Utilizing a Lodestar approach, and in view of the totality of the circumstances (including the fact that no opposition was filed), the Court grants Defendant's request for sanctions against Plaintiff in the reduced sum of \$285.00 (1 hour at \$225 plus \$60 filing fee). Sanctions are payable within 30 days from the date of the notice of ruling.

2. Defendant's Motion to Compel Responses to Form Interrogatories [Set One]

Legal

Standard

If a party to whom

interrogatories were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., § 2030.290.) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., § 2030.290, subd. (a).) A

party moving to compel discovery responses under this statutory provision is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., § 2030.290, subd. (b); see also *Sinaiko Healthcare*

Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that “meet and confer” requirement “did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party’s failure to respond ‘within the statutorily permitted time’”].) A A A A A A

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c).)

Discussion

Defendant

moves the Court for an order compelling Plaintiff to provide verified responses to its First Set of Form Interrogatories. Defendant also seeks sanctions against Plaintiff and his counsel of record in the amount of \$735.00.

Defendant’s counsel represents as follows:

Defendant propounded the Form Interrogatories, Set One (“FROGs”) on Plaintiff on May 12, 2026. (Akahori Decl., ¶ 3, Exh. A.) Defendant did not receive either a response or a request for an extension by June 15, 2026. (Id., ¶ 4.) On June 19, 2026, Defendant emailed opposing counsel regarding the discovery request. (Id., ¶ 5, Exh. B.) Plaintiff has failed to respond to the FROGs as of the filing of this motion. [FN2] (Id.)

The unopposed motion to compel Plaintiff’s responses to Defendant’s Form Interrogatories, Set One, is GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling.

Sanctions

Defendant requests sanctions in the amount of \$735.00 (i.e. 1 hour for this Motion; 1 hour for Reply; and 1 hour to prepare for and attend the hearing for the motion) at a rate of \$225/hour. (Akahori Decl., ¶ 8.) Defendant also requests \$60.00 in costs. (Id., ¶ 9.)

Utilizing a Lodestar approach, and in view of the totality of the circumstances (including the fact that no opposition was filed), the Court grants Defendant's request for sanctions against Plaintiff in the reduced sum of \$285.00 (1 hour at \$225 plus \$60 in costs). Sanctions are payable within 30 days from the date of the notice of ruling.

3. Defendant's Motion to Compel Responses to Special Interrogatories

Legal Standard

See above.

Discussion

Defendant moves the Court for an order compelling Plaintiff to provide verified responses to its First Set of Special Interrogatories. Defendant also seeks sanctions against Plaintiff and his counsel of record in the amount of \$735.00.

Defendant's counsel represents as follows:

Defendant propounded the Special Interrogatories, Set One ("SROGs") on Plaintiff on May 12, 2026. (Akahori Decl., ¶ 3, Ex. A.) Defendant did not receive either a response or a request for an extension by June 15, 2026. (Id., ¶ 4.) On June 19, 2026, Defendant emailed opposing counsel regarding the discovery request. (Id., ¶ 5, Ex. B.) Plaintiff has failed to respond to the SROGs as of the filing of this motion. [FN3] (Id.)

The unopposed motion to compel Plaintiff's responses

to Defendant's Special Interrogatories, Set One, is GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling.

Sanctions

Defendant requests sanctions in the amount of \$735.00 (i.e. 1 hour for this Motion; 1 hour for Reply; and 1 hour to prepare for and attend the hearing for the motion) at a rate of \$225/hour. (Akahori Decl., ¶ 8.) Defendant also requests \$60.00 in costs. (Id., ¶ 9.)

Utilizing a Lodestar approach, and in view of the totality of the circumstances (including the fact that no opposition was filed), the Court grants Defendant's request for sanctions against Plaintiff in the reduced sum of \$285.00 (1 hour at \$225 plus \$60 in costs). Sanctions are payable within 30 days from the date of the notice of ruling.

4. Defendant's Motion to Compel Responses to Form Interrogatories [Set Two]

Legal Standard

See above.

Discussion

Defendant moves the Court for an order compelling Plaintiff to provide verified responses to its Second Set of Form Interrogatories. Defendant also seeks sanctions against Plaintiff and his counsel of record in the amount of \$735.00.

Defendant's counsel represents as follows:

Defendant propounded the Form Interrogatories, Set Two ("FROGs") on Plaintiff on May 12, 2026. (Akahori Decl., ¶ 3, Ex. A.) Defendant did not receive either a response or a request for an extension by June 15, 2026. (Id., ¶ 4.) On June 19, 2026, Defendant emailed opposing counsel regarding the discovery request. (Id., ¶ 5, Ex. B.) Plaintiff has failed to respond to the FROGs as of the filing of this motion. [FN4] (Id.)

The unopposed motion to compel Plaintiff's responses

to Defendant's Form Interrogatories, Set Two, is GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling.

Sanctions

Defendant requests sanctions in the amount of \$735.00 (i.e. 1 hour for this Motion; 1 hour for Reply; and 1 hour to prepare for and attend the hearing for the motion) at a rate of \$225/hour. (Akahori Decl., ¶ 8.) Defendant also requests \$60.00 in costs. (Id., ¶ 9.)

Utilizing a Lodestar approach, and in view of the totality of the circumstances (including the fact that no opposition was filed), the Court grants Defendant's request for sanctions against Plaintiff in the reduced sum of \$285.00 (1 hour at \$225 plus \$60 in costs). Sanctions are payable within 30 days from the date of the notice of ruling.

5. Defendant's Motion to Compel Responses to Requests for Production

Legal Standard

If a party to whom inspection demands is directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., § 2031.300, subd. (b).) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., § 2031.300(a).) A party moving to compel discovery responses under this statutory provision is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., § 2031.300, subd. (b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that "meet and confer" requirement "did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party's failure to respond 'within the statutorily permitted time'"].)

If the court finds that a party has unsuccessfully made or opposed a motion to compel

responses, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”²(Code Civ. Proc., § 2031.300, subd. (c).)

Discussion

Defendant

moves the court for an order compelling Plaintiff to provide verified responses to its First Set of Requests for Production. Defendant also seeks sanctions against Plaintiff and his counsel of record in the amount of \$735.00.

Defendant’s counsel represents as follows:

Defendant propounded the Requests for Production, Set One (“RFPs”) on Plaintiff on May 12, 2026. (Akahori Decl., ¶ 3, Ex. A.) Defendant did not receive either a response or a request for an extension by June 15, 2026. (Id., ¶ 4.) On June 19, 2026, Defendant emailed opposing counsel regarding the discovery request. (Id., ¶ 5, Ex. B.) Defendant states that Plaintiff has failed to respond to the RFPs as of the filing of this motion. [FN5] (Id.)

The unopposed motion to compel Plaintiff’s responses to Defendant’s Requests for Production, Set One, is GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling.

Sanctions

Defendant requests sanctions in the amount of \$735.00 (i.e. 1 hour for this Motion; 1 hour for Reply; and 1 hour to prepare for and attend the hearing for the motion) at a rate of \$225/hour. (Akahori Decl., ¶ 8.) Defendant also requests \$60.00 in costs. (Id., ¶ 9.)

Utilizing a Lodestar approach, and in view of the totality of the circumstances (including the fact that no opposition was filed), the Court grants Defendant’s request for sanctions against Plaintiff in the reduced sum of \$285.00 (1 hour at \$225 plus \$60 in costs). Sanctions are payable within 30 days from the date of the notice of ruling.

[FN1] Defendant filed a notice of non-opposition on September 9, 2026. The Notice stated that Plaintiff has yet to serve any responses to the discovery at issue.

[FN2] Defendant filed a notice of non-opposition on September 9, 2026. The Notice stated that Plaintiff has yet to serve any responses to the discovery at issue.

[FN3] Defendant filed a notice of non-opposition on September 9, 2026. The Notice stated that Plaintiff has yet to serve any responses to the discovery at issue.

[FN4] Defendant filed a notice of non-opposition on September 9, 2026. The Notice stated that Plaintiff has yet to serve any responses to the discovery at issue.

[FN5] Defendant filed a notice of non-opposition on September 9, 2026. The Notice stated that Plaintiff has yet to serve any responses to the discovery at issue.